DV-145 Order to Prevent Child Abduction

Case Number:

This form is attached to DV-140, *Child Custody and Visitation Order.*

1 Name of Protected Person: _____

Relationship to children: ☐ Parent ☐ Legal Guardian ☐ Other *(describe):* _____

2 Name of Restrained Person: _____

Relationship to children: ☐ Parent ☐ Legal Guardian ☐ Other *(describe):* _____

3 Court's Decision

Based on the information given, the judge finds that:

a. ☐ **There is not a risk** that the person in 2 might take the children without proper permission. The judge has not granted any of the orders in 4–12.

b. ☐ **There is a risk** that the person in 2 might take the children without permission because person in 2:

(Check all that apply):

(1) ☐ Has violated or threatened to violate a custody or visitation order.

(2) ☐ Does not have strong ties to California.

(3) ☐ Has done things recently that make it easy to take the children *(check all that apply):*

- ☐ Quit a job
- ☐ Closed a bank account
- ☐ Sold or gotten rid of property
- ☐ Sold a home or ended a lease
- ☐ Hidden or destroyed documents
- ☐ Applied for a passport, birth certificate, or school or medical records

(4) ☐ Has a history of *(check all that apply):*

- ☐ Abusing person in 1
- ☐ Abusing other partners
- ☐ Child abuse
- ☐ Taking the children without permission
- ☐ Not cooperating with person 1 in parenting

(5) ☐ Has a criminal record

(6) ☐ Has strong ties in:

- ☐ Another county in California *(list county):* _____
- ☐ Another state *(list states):* _____
- ☐ Another country *(list country):* _____

(7) ☐ Is a citizen of another country *(list country):* _____

(8) ☐ Other reasons: _____

_____

_____

The Orders are Granted as Follows:

4 ☐ Do Not Move Without Written Permission of the Other Parent or Court Order

The person in 2 must ***not*** move with the children outside

☐ This county ☐ California ☐ The United States Other *(specify):* _____

without written permission from the other parent or a court order.

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5 ☐ **Turn In and Do Not Apply for Passports or Other Important Documents**

Person in 2 must not apply for passports or other documents that can be used for travel, like visas and birth certificates, and must turn in the following documents: _____

by *(date):* _____ to *(name):* _____

6 ☐ **Provide Travel Plan and Documents**

Person in 2 must give the person in 1 the following before traveling with the children *(check all that apply):*

☐ Children's travel schedule
☐ Copies of round-trip airline tickets
☐ Addresses and telephone numbers where children can be reached
☐ An open airline ticket for the person in 1 in case the children are not returned
☐ Other *(describe):* _____

7 ☐ **Notify Other State of Travel Restrictions**

Person in 2 must register this order with *(list county and state):* _____ before the children can travel to that state for visits.

8 ☐ **Notify Foreign Embassy or Consulate of Passport Restrictions**

Person in 2 must notify *(name of embassy or consulate):* _____ of this order and provide the court with proof of the notice by *(date):* _____

9 ☐ **Foreign Custody and Visitation Order**

Person in 2 must get a custody and visitation order equal to the most recent U.S. order before the children can travel to *(list country):* _____ for visits.

The court recognizes that foreign orders may be changed or enforced depending on the laws of that country.

10 ☐ **Post a Bond**

The person in 2 must post a bond for $_____.

11 ☐ **Enforcing Order**

The court authorizes any law enforcement officer to enforce this order. In this county, contact the Child Abduction Unit of the Office of the District Attorney at: _____

12 ☐ **Other** *(list other orders or jurisdictional factors):* _____

_____

Notice to Authorities in Other States and Countries: This court has jurisdiction to make child custody orders under California's Uniform Child Custody Jurisdiction and Enforcement Act (California Family Code, part 3, section 3400 et seq.) and The Hague Convention on the Civil Aspects of International Child Abduction (22 U.S.C. section 9001 et seq.). If jurisdiction is based on other factors, they will be listed above in 12.

This is a Court Order.

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